

Mustard Seeds and Rape Seeds (oil seed) Grading and Marking Rules, 2012

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Mustard Seeds and Rape Seeds (oil seed) Grading and Marking Rules, 2012

UNION OF INDIA

India

Mustard Seeds and Rape Seeds (oil seed) Grading and Marking Rules, 2012

Rule MUSTARD-SEEDS-AND-RAPE-SEEDS-OIL-SEED-GRADING-AND-MARKING-RULES-2012 of 2012

Published on 24 January 2012

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Mustard Seeds and Rape Seeds (oil seed) Grading and Marking Rules, 2012

Published vide Notification New Delhi, the 24th January, 2012

Ministry of Agriculture

(Department of Agriculture and Co-operation)

G.S.R. 40(E). - Whereas the draft of Mustard and Rapeseeds Grading and Marking Rules, 2011, was published as required by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937) in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (1) vide notification number G.S.R. 574(E) dated the 28th July, to 11 inviting objections and suggestions from all persons likely to be affected thereby within forty five days from the date on which copies of the said notification published in the Gazette of India were made available to the public,

And whereas copies of the said notification were made available to the public on the 3rd August, 2011,
And whereas the objections and suggestions received from the public in respect of the said draft rules have been duly considered,

Now, therefore, in exercise of the powers conferred by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937), and in supersession of the Rape and Mustard seeds Grading and Marking Rules, 1964, except as respects things done or omitted to be done before such supersession, the Central Government hereby makes the following rules, namely -

Rules

1.

Short title, application and commencement.

(1)

These rules may be called Mustard Seeds and Rape Seeds (oil seed) Grading and Marking Rules, 2012.

(2)

They shall apply to -

(a)

mustard seeds obtained from plant *Brassica Juncea* (L), *Brassica nigra* (L), and *Brassica cannata* A Braun of the family Brassicaceae

(b)

rapeseeds obtained from the plant *Brassica rapa* L (syn *B campestris* L) and *Brassica napus* L of the family Brassicaceae

(3)

They shall come into force on the date of their final publication in the Official Gazette-

2.

Definitions.

- In these rule, unless the context otherwise requires,-

(a)

"Agricultural Marketing Adviser" means the Agricultural Marketing Adviser to the Government of India,

(b)

"authorized packer" means a person or a body of persons who has been granted a certificate of authorisation to grade and mark mustard seeds and rape seeds in accordance With the grade standards and procedure specified in these rules,

(c)

"Certificate of Authorization" means a certificate issued under the provisions of the General Grading and Marking Rules, 1988 authorising a person or a body of persons to grade and mark mustard seeds and rape seeds With the grade designation mark,

(d)

"General Grading and Marking Rules" means the General Grading and Marking Rules, 1988 made under section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937),

(e)

"Grade designation mark" means the "Agmark insignia" referred to in rule 5,

(f)

"Schedule" means a Schedule appended to these rules

3.

Grade designations.

- The grade designations to indicate the quality of mustard seeds and rape seeds shall be as set out in column 1 of Criteria for Grade designation of Schedule II

4.

Quality.

- For the purpose of these rules, the quality of mustard seeds and rape seeds shall be as specified in Schedule II.

5.

Grade designation mark.

- The grade designation mark shall be "AGMARK insignia" consisting of a design incorporating the certificate of authorisation number, the word "AGMARK", name of commodity and grade designation resembling the design as set out in Schedule-I.

6.

Method of packing.

(1)

Mustard seeds and rape seeds shall be packed in jute bags or new or un-mended B-Twill bags or polywoven bags or cloth bags with inner lining or poly pouches, High Density Poly Ethylene (HDPE) laminated paper bags, or any other packing material as approved by the Agricultural Marketing Adviser.

(2)

The packing material shall be clean, sound, free from insect and fungal infestation and should not impart any toxic substance or undesirable odour or flavour to the product.

(3)

Mustard seeds and rape seeds shall be packed in pack sizes as permitted in the Legal Metrology (Packaged Commodities) Rules, 2011 or as per the instructions issued by Agricultural Marketing Adviser from time to time.

(4)

Graded material of small pack sizes of the same lot or batch and grade may be packed in a master container With complete details (hereon along with grade designation mark.

(5)

Each package shall contain mustard seeds or rape seeds of the same type, and of the same grade designation.

(6)

Each, package shall be properly and securely closed so as to disallow spilling.

7.

Method of Marking.

(1)

The grade designation mark shall be securely affixed to or printed on each package in a manner approved by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with rule 11 of the General Grading and Marking Rules, 1988.

(2)

In addition to the grade designation mark, following particulars shall be clearly and indelibly marked on each package, namely:-

(a)

name of the Commodity,

(b)

grade,

(c)

variety or trade name; (optional)

(d)

date of packing;

(e)

place of packing,

(f)

lot or batch number;

(g)

crop year (optional)

(h)

net weight,

(i)

name and address of the packer,

(j)

maximum, retail price (Inclusive of all taxes),

(k)

Best Before _____ Month _____ Year,

(l)

any other particulars as may be specified by the Agricultural Marketing Adviser

(3)

The ink used for marking on packages shall be of such quality Which shall not contaminate the mustard seeds and rape seeds

(4)

The authorised packer, may, after obtaining prior approval of the Agricultural Marketing Adviser or an officer authorised by him in this behalf, mark his private trade mark or trade brand on the graded packages which do not indicate quality other than that indicated by the grade designation mark affixed to the graded packages in accordance With these rules.

8.

Special conditions of certificate of authorisation.

- in addition to the conditions specified in sub-rule (8) of rule 3 of the General Grading and Marking Rules, every authorised packer shall comply with the following conditions, namely:-

(i)

the authorised packer shall either set up his own laboratory or (have access to an approved State Grading Laboratory or cooperative/association laboratory or a Private Commercial laboratory manned by a qualified chemist approved by the Agricultural Marketing Adviser or an, officer authorised by him in this behalf in accordance with rule 9 of the General Grading and Marking Rules, 1988 few testing the quality of Mustard and Rape Seeds,

(ii)

the premises shall be maintained in hygienic and sanitary conditions with proper ventilations and well lighted arrangement. The personnel engaged in these operations shall be in sound health and free from any infectious, contagious or communicable diseases,

(iii)

the premises shall have adequate storage facilities with pucca floor and free from rodent and insect infestation,

(iv)

the authorised packer and the approved chemist shall observe all instructions regarding testing, grading, packing, marking, sealing and maintenance of records which may be issued by the Agricultural Marketing Adviser or any other officer authorised by him in this behalf from time to time.

I

(See rule 5)

(Design of Agmark insignia)

Name of the Commodity.....

Grade.....

II

(see rule 3 and 4)

Grade Designation And Quality of Mustard And Rape Seed (Oil Seed)

1. (a). Mustard seeds shall be obtained from plant Brassica juncea (L), Brassica nigra(L.), and Brassica cannata A. Braun of the family Brassicaceae.

(b)

Rapeseeds shall be obtained from the plant Brassica rapa L (syn B campestris L.) and Brassica napus L of the family Brassicaceae

2. Minimum Requirements

(i)

Mustard and Rapeseeds shall be-

(a)

mature, clean and dried seeds,

(b)

wholesome;

(c)

uniform in size, shape, colour, texture;

(d)

free from living and dead insects, insect fragments and mites;

(e)

free from fungus infestation and moulds,

(f)

free from added colouring matter and toxic material,

(g)

free from rodent hairs and excreta,

(h)

free from the seeds of *Argemone maxicana* (Linn.);

(i)

free from rancidity and mustiness;

(j)

The odour and flavour of the seeds when grinded and moistened shall be fresh and pungent.

(k)

free from toxic seeds including *Datura*, *Akra* and Corn cockle.

(ii)

It shall comply with the restrictions in regard to residual levels of metal contaminants, insecticides, and pesticides, crop contaminants, naturally occurring toxic substances and other food safety requirements as specified under the Food Safety and Standards (Contaminants, Toxins and Residues) Regulations, 2011 and the Food Safety and Standards (Food Products Standards and Food additives) Regulations, 2011

(iii)

It shall comply with the residual limits of heavy metals, pesticides, and other food safety requirements as laid down by the Codex Alimentarius Commission, or importing countries requirement for exports.

Table

3. The criteria for Grade designation shall be as follows

Designation

Extraneous matter

Damaged and discoloured seeds percent by mass

(max)

Dead and immature seeds, percent by mass (max)

Other Edible seeds, Percent by mass (max)

Moisture, percent by mass (max)

Oil content, percent by mass on dry basis (Min)

Organic, percent by mass (max),

Inorganic, percent by mass (mass)

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

Mustard Seed

Rapeseed

Special

0.10

0.10

0.50

0.50

0.10

6.0

42.0

45.0

Standard

0.50

0.20

0.80

0.80

0.15

7.0

38.0

42.0

General

0.75

0.25

1.00

1.00

0.20

7.5

36.0

36.0

4. Other requirements -

(i)

The condition of the Mustard and Rape Seeds shall be as to enable

It, -

(a)

to Withstand transport and handling, and

(b)

to arrive in satisfactory condition at the place of destination,

(ii)

mustard and rape Seeds shall be stored in appropriate cool and dry place maintained in a clean and hygienic condition

Explanation - For the purposes of this Schedule;-

(a)

"Extraneous matter" means,-

(i)

organic matter consists of husk, straws, weed seeds and other inedible grains

(ii)

inorganic matter consists of sand, gravel, dirt, pebbles, stones, lumps of earth, clay and mud,

(b)

"Damaged and discoloured seeds" means seeds that are internally damaged or dis-coloured, damage and discoloration materially effecting the quality:-

(c)

"Immature and shriveled seeds" means seeds that are not properly developed

(d)

"Dead seeds" are those seeds which are duds and can easily be crushed by hands

(e)

"Other edible seeds' means edible seeds (including oil seeds) other than the one which is under consideration

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